

equall, that in that case, of which part the lord chancellor was, on that side it should be decreed, without regard, whether it was for the plaintiff or defendant: and it was resolved, that regularly *et de communi jure*, in respect of the equality of the voices no sentence could be given in that case, as it holdeth in the high court of parliament, and all other courts, according to the old rule, *paribus sententiis reus absolvitur*. And therefore the presidents of this court were to be searched; for except presidents could make a difference between this court and others, the defendant could not be sentenced. Whereupon the court referred this question to the two chief justices, that they calling unto them the kings learned counsell to view presidents, whether by the custome of this court the common rule in other courts is altered. Before whom in the presence of the kings learned counsell two presidents were produced for proof of the said custome, viz. one Termino Hil. anno 39 Eliz. between Gibson plaintiff, and Griffith and others defendants: wherein the complaint was for a riot. And upon hearing of the cause eight sat in court, and four gave their sentence that the defendants were guilty, and the other four, whereof the lord chancelour was one, did acquit the defendants, and no sentence of condemnation was ever entred. But the justices took it, that that president tended not to prove any such custome, for it agreed with the rule in other courts. Another president was shewed, Termino Hil. 45 Eliz. in an information by the queens attorny generall against Bathern and others for forging of a will, &c. Upon the hearing of the cause, the presence consisting of eight, whereof four gave sentence against the defendant for forgery, and to be punished according to the statute of 5 Eliz. the other four, whereof the lord chancelour was one, found him guilty of a misdemeanour, and not of the forgery, and imposed a fine of five hundred pound only, and imprisonment, and that was entred according to the lord chancelours voice. But no rule of court was shewed for entring thereof in that manner: so as it appeared not that it was ever moved, or debated in court, and in that case all concluded against the defendant, and it is but one president. Now whether this one, being such a one as it is, and so late, be sufficient to alter the generall law and course of all other courts, I leave to the judgment of this honourable court: and sentence was never given against Sir Stephen Procter agreeable to the generall rule in other courts. See Rot. parl. 8 H. 6. nu. 28.

Erodus fo. 172.

Hil. 39 Eliz. in camera stellata, Gibsons case.

Hil. 45 EL in camera stellata, Batherns case.

Lawrence Hide and Henry Hide esquires, exhibited a bill of complaint against George Coriet and others upon the statute of 32 H. 8. cap. 9. for unlawfull maintenance; and complained for three severall leases for certain years of the parsonage of Dynton in the county of Wilt. whereof the lessor nor any of his ancestors were in possession within a year before, &c. and pursued the statute: upon which part of the bill (for the bill concerned riots and other things) the defendant demurred in law, and the causes of the demurrer were. First, that by the said act this court had no jurisdiction of this cause upon this statute, because that the act which is introductory of a new law did not give jurisdiction to this court, but the suit must be in the courts of the common law upon this act, which (said they) also appeared, in that in the remedy given by the act in this clause, *In which action, bill, plaint,*

Mic. 36 & 37 EL.